

25NWCV01199 25NWCV01199

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV01199 Hearing Date: August 5, 2026 Dept: C

WILCOXSON vs NORWALK

HEALTHCARE INC.

CASE NO.: 25NWCV01199

HEARING: 8/5/26 @ 9:30 AM

#12

TENTATIVE RULING

The Court will hear from Plaintiff Lisa

Wilcoxson regarding the status of responses to Defendant Norwalk Healthcare, Inc.'s discovery requests.

Plaintiff

Lisa Wilcoxson (Plaintiff) alleges that while under the custodial care of NORWALK HEALTHCARE INC. d/b/a INTERCOMMUNITY NURSING FACILITY HEALTHCARE & REHABILITATION CENTER, Decedent DUANE WILCOXSON, Lisa Wilcoxson's husband, was subjected to elder abuse as a result of Defendant's reckless neglect and conduct. (Complaint, ¶¶ 5-17.)

Defendant

NORWALK HEALTHCARE INC. (Defendant) moves to compel Plaintiff Lisa Wilcoxson's (Plaintiff) further responses to Request for Production of Documents, Set One, Nos.: 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, and 62;

further responses to Form Interrogatory Nos.: 2.1, 2.2, 2.3, 2.5, 2.6, 2.7, 2.11, 2.13, 4.1, 10.3, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 14.1, 14.2, and 17.1; further responses to Special Interrogatory, Set One, Nos.: 2, 7, 11, 14, 17, 20, 23, 26, 29, 35, 36, 37, 38, 39, 40, 42, 47, 50, 53, 56, 58, 59, 61, 62, 63, 64, 65, 66, 67, 69, 70, 71, 72, 73, 76, 78, 79, 80, 82, 83, 84, 89, 91, 93, 94, 95, 96, 97, 98, 99, 100, 101, and 102; and further responses to Special Interrogatory, Set Two, Numbers 107 to 113.

Previously,

Defendant moved to abate the action based in part upon Plaintiff's failure to file a Successor in Interest Declaration as required by C.C.P. §377.32. On June 24, 2026, the Court denied Defendant's motion to abate and ordered Plaintiff to file the Successor In Interest

Declaration within ten days. Plaintiff's

Successor In Interest Declaration was filed on July 15, 2026. Plaintiff's Opposition to the instant motions to compel further discovery responses was due July 23, 2026. As of July 31, 2026, no opposition was filed despite Defendant's meet and confer efforts. (See, Aziz Decl., ¶¶ 2-6.)

Defendant

contends that on July 16, 2026, Plaintiff served Plaintiff's Amended Responses to Defendant's Special Interrogatories, Set One, Nos. 69, 89 and 102 only. On the same date, Plaintiff served Plaintiff's Amended Responses to Defendant's Special Interrogatories, Set Two, Nos. 107, 108, and 109. Defendant contends that Plaintiff has not served further supplemental responses to Form Interrogatories, Set One, or Requests for Production, Set One.

Plaintiff LISA

WILCOXSON's Successor In Interest declaration gives her the authority to provide verified responses to Defendant's discovery requests. The Court observes that the declaration was filed on July 15, 2026, only eight days before Plaintiff's opposition briefs to the instant discovery motions were due. The Court will hear from Plaintiff regarding the status of the outstanding discovery requests.